

Tentative Rulings
September 11, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing in person, via CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests the parties to provide further argument at the hearing. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: As of January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Cobos, et al, v. National General Insurance Co., et al*, Case No. CIVDS1914609
Plaintiff's MTC Further Responses to Requests for Production, Set Five (RFP5)
Plaintiff's MTC Further Responses to Requests for Production, Set Sixteen (RFP16)
9/11/26, 9:00 a.m., Dept. S-17

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The Court would **GRANT** the motions and hear argument on a reasonable timeline for further responses and whether a phased or rolling production of documents is reasonable and appropriate. As a preliminary matter, the Court suggests compliance within 75 days with a compliance hearing and OSC re sanctions sometime thereafter.

Posture of Discovery Dispute

On March 10, 2026, Plaintiffs filed these motions to compel further discovery. Two of the motions two concern RFP5 and RFP15. The motions are supported by separate statements and the declaration of counsel, Jonathan King.

With respect to RFP5, it concerns numbers 381, 382, and 383, and RFP16 concerns numbers 2482, 2483, and 2484. This was likewise served on November 10, 2025, and responses were also made on January 21, 2026. These discovery responses have been the subject of numerous informal discovery conferences (IDCs).

Analysis

RFP5-381, 382, 383 & RFP16-2482, 2483, 2484: RFP5 (served on National) and RFP16 (served on Integon) make, essentially, requests as follows:

Nos. 381/2482: For each individual listed in response to Special Interrogatory 1/23, please produce the corresponding Claim File.

Nos. 382/2483: For each individual listed in response to Special Interrogatory 1/23, please produce the corresponding Underwriting File.

Nos. 383/2484: For each individual listed in response to Special Interrogatory 1/23, please produce the corresponding Certified Insurance Policy.

Similarly, Defendants again oppose due to burden in the context of the significant time spent on discovery already. Defendants acknowledge delay but state they will provide information as they are able to do so. Thus, the opposition focuses more on what they consider a *reasonable delay* given the parameters of the discovery and the size of the class.

In response to the objections, Plaintiffs further argue they are entitled to class member names and contact information as part of the normal discovery process even when a class has not yet been certified and the class members are merely putative or potential members. (See *Puerto v. Superior Court* (2008) 158 Cal.App.4th 1242, 1253-1254 [finding this is basic discovery].) In addition, a Defendant must show that the burden of answering is so unjust that it amounts to oppression. (*West Pico Furn. Co. v. Superior Court* (1961) 56 Cal.2d 407, 418-419.) Here, Plaintiffs argue Defendants cannot possibly meet that burden because they are only seeking the normal class discovery. Plaintiffs also take issue with Defendants' reliance on Insurance Code section 791.13, *et seq.* California courts have found that the

Insurance Code does not limit otherwise discoverable information. (See, e.g., *Irvington-Moore, Inc. v. Superior Court* (1993) 14 Cal.App.4th 733, 741.)

Plaintiffs are reasonable when they argue in the reply that the trial is scheduled for March of 2027, and this discovery is necessary and proper to the prosecution of their case. An open-ended timeline is problematic and untenable. Indeed, movant's declaration details the discovery delays that have been present in this action, and the Court, though the IDC process, is well apprised of the effort on both side to provide necessary discovery. While it is clear that the parties are *working on* the provision of discovery responses, the timeline dictates that this motion work and resultant orders compelling response are now necessary.
